

Harpreet Singh Bedi v. U.P.P.C.L. — co-sharer NOC for fresh connection remitted to EE

High Court of Judicature at Allahabad · Division Bench · 23 February 2016 · Writ-C No. 7304 of 2016 · **Writ disposed; EE to decide representation under Supply Code 2005.**

HEADNOTE

Applicant for a fresh connection challenged UPPCL's insistence on a no-objection from co-sharers, arguing that clause 4.4 of the U.P. Electricity Supply Code, 2005 requires such NOC only of a tenant. The Division Bench did not decide that construction. It disposed of the writ by granting liberty to represent to the Executive Engineer, Gajraula (Amroha), to decide the claim in accordance with the Supply Code preferably within two months.

FACTUAL SUMMARY

Harpreet Singh Bedi applied to U.P. Power Corporation Ltd. for a fresh electricity connection. The licensee required him to produce a no-objection certificate from co-sharers of the property. He filed a writ petition in the Allahabad High Court arguing that paragraph 4.4 of the U.P. Electricity Supply Code, 2005 insists on such a no-objection only vis-à-vis a tenant, not where several co-sharers exist. Counsel for the respondents stated that the Executive Engineer, Division Gajraula, District Amroha would revisit the issue.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

fresh-connection-co-sharer-no-objection

HOLDING

Without construing whether clause 4.4 requires a no-objection from co-sharers for a fresh connection, the Court granted liberty to represent the claim to the Executive Engineer, Division Gajraula, District Amroha, who is to decide it in accordance with the U.P. Electricity Supply Code, 2005 preferably within two months of receipt of a certified copy. ¶ 1

PRINCIPLE TAGS

clause-4.4-occupant-connection-on-indemnity-bond Applicant for a fresh connection challenged UPPCL's insistence on a no-objection from co-sharers, arguing that clause 4.4 of the U.P. Electricity Supply Code, 2005 requires such NOC only of a tenant. The Division Bench did not decide that construction.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CLAUSE 4.4 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005 REQUIRES A NO-OBJECTION FROM CO-SHARERS FOR A FRESH CONNECTION, AS DISTINCT FROM A TENANT

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